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इस भाग में भिन्न पृष्ठ संख्या दी जाती है जिससे कि यह अलग संकलन के रूप में रखा जा सके।
Separate paging is given to this Part in order that it may be filed as a separate compilation.

## MINISTRY OF LAW AND JUSTICE
**(Legislative Department)**

*New Delhi, the* 20*th February,* 2026*/Phalguna* 1, 1947 *(Saka)*

# THE LAKSHADWEEP (REGISTRATION AMENDMENT) REGULATION, 2026

No. 2 OF 2026

Promulgated by the President in the Seventy-seventh Year of the Republic of India.

A Regulation further to amend the Registration Act, 1908, with a view to modernise and digitise the document registration framework; to enhance the legal certainty and public notice of property rights; to curb fraudulent practices and improve accountability through regulation of document writers; to facilitate the smooth conduct of real estate and civil transactions in line with the economic development goals; and to empower the administration to regulate registration activity, in the Union territory of Lakshadweep.

In exercise of the powers conferred by article 240 of the Constitution, the President is pleased to promulgate the following Regulation made by her:—

Short title, extent and commencement.

**1**. (*1*) This Regulation may be called the Lakshadweep (Registration Amendment) Regulation, 2026.

(*2*) It extends to the whole of the Union territory of Lakshadweep.

(*3*) It shall come into force on such date as the Administrator may, by notification in the Official Gazette, appoint.

Amendment of section 2.

**2**. In section 2 of the Registration Act, 1908 (hereinafter referred to as the principal Act), 16 of 1908.—

(*i*) in clause (*1*), for the words "his father's name, or where he is usually described as the son of his mother, then his mother's name", the words "his marital status and his father's name, or where he is usually described as the ward of his mother, then his mother's name'' shall be substituted;

(*ii*) after clause (*1*), the following clause shall be inserted, namely:—

'(*1A*) "Administration" means the Administration of the Union territory of Lakshadweep headed by the Administrator appointed by the President under article 239 of the Constitution;';

(*iii*) for clause (*2*), the following shall be substituted, namely:—

'(*2*) "Book" includes a portion of a Book and also any number of sheets connected together with a view of forming a Book or portion of a Book and also includes a Book in electronic form.

*Explanation*.—For the purposes of this clause, the expression "electronic form" shall have the same meaning as assigned to it in clause (*r*) of sub-section (*1*) of section 2 of the Information Technology Act, 2000.'; 21 of 2000.

(*iv*) after clause (*9*), the following clauses shall be inserted, namely:—

'(*9A*) "notification" means a notification published in the Official Gazette of the Union territory of Lakshadweep, and the expression "notified" shall be construed accordingly;

(*9B*) "prescribed" means prescribed by rules made by the Administration of the Union territory of Lakshadweep;';

(*v*) after clause (*10*), the following clause shall be inserted, namely:—

'(*11*) "Union territory" means the Union territory of Lakshadweep.'.

Amendment of section 17.

**3**. In section 17 of the principal Act,—

(*a*) in sub-section (*1*), after clause (*e*) and before the proviso, the following clauses shall be inserted, namely:—

"(*f*) any decree or order or award or a copy thereof, with respect to an immovable property, passed by a civil court, on consent of the defendants or on circumstantial evidence, but not on the basis of any instrument which is admissible in evidence under section 35 of the Indian Stamp Act, 1899 such as registered title deed produced by the plaintiff, where such decree or order or award purports or operate to create, declare, assign, limit, extinguish whether in present or in future, the right, title or interest, whether vested or contingent, of the value of one hundred rupees or more; and 2 of 1899.

(*g*) sale certificate issued by any competent officer or authority under any Central Act or State Act for the time being in force:";

(*b*) in sub-section (*2*),—

(*i*) in clause (*vi*), for the words "any decree or order of a Court", the words, brackets, letter and figure "any decree or order of a court, not being a decree or order or award falling under clause (*f*) of sub-section (*1*)," shall be substituted;

(*ii*) the *Explanation* shall be omitted.

Insertion of new section 19A.

**4**. After section 19 of the principal Act, the following section shall be inserted, namely:—

Documents presented for registration are to be accompanied by true copies thereof.

"19A. (*1*) No document shall be accepted for registration, unless it is accompanied by a true copy thereof.

(*2*) The true copy referred to in sub-section (*1*) shall be legibly handwritten, printed, typewritten, lithographed or otherwise prepared in accordance with such rules as may be made in this behalf, and such true copy shall be self attested.".

Amendment of section 20.

**5**. In section 20 of the principal Act, in sub-section (*1*), after the words "persons executing the document", the words "and in the case of a document for sale of property, the persons claiming under that document also" shall be inserted.

Insertion of new section 22A.

**6**. After section 22 of the principal Act, the following section shall be inserted, namely:—

Grounds for refusal of registration of a document.

"22A. (*1*) The registering officer may refuse the registration of a document on the following grounds:—

(*a*) the document is submitted without a true translation in a language commonly understood in the district of the registering officer;

(*b*) any interlineation, blank, erasure or alteration appears in the document, unless attested with the signature or initial of such person executing the document;

(*c*) non-testamentary document, as specified, is presented without sufficient description to identify the property that is the subject of registration as specified under section 21;

(*d*) document, not being a will, is presented for registration later than four months after the date of execution, under section 23, subject to sections 24, 25 and 26;

(*e*) the person by whom the document is purported to be executed—

(*i*) denies the execution of the document;

(*ii*) is a minor;

(*iii*) appears to the registering officer to be a person with mental incapacity; or

(*iv*) is dead and such person's representative or assign denies execution;

(*f*) the document relates to transfer of property by way of agreement to sale, sale, gift, exchange or lease or otherwise in respect of any immovable property owned by the Central Government or Union territory or any authority or undertaking of the Central Government or Union territory or any authority or undertaking constituted or established under any Central Act or any other Regulation for the time being in force, unless such document is accompanied by a no-objection certificate issued by the competent authority;

(*g*) the document relates to transfer of property by way of agreement to sale, sale, gift, exchange or permanent alienation or lease or otherwise pertaining to any immovable property which is attached permanently or provisionally by any competent authority under any Central Act or any other Regulation for the time being in force or any court or tribunal or authority, upon the production of order of such attachment;

(*h*) the document relates to the transfer of property in respect of which the approval of the Central Government or Union territory or any authority or undertaking of the Central Government or Union territory or any authority or undertaking constituted or established under any Central Act or any other Regulation is required under any law for the time being in force, before entering into any transactions in connection with such immovable property, unless such document is accompanied by an approval (by whatever name called) issued by the competent authority;

(*i*) the appropriate registration fee under this Act has not been paid;

(*j*) the registering officer finds that the document has not been executed by the person by whom it is purported to have been executed based on information accessed and examined;

(*k*) the registering officer finds that he is not satisfied about the identity of the persons appearing before him and alleging to have executed the document; or

(*l*) any other ground on which registration may be refused by the registering officer under this Act.

(*2*) The power under this section must not be construed as empowering the registering officer to adjudicate upon questions of title or ownership of property, which are within the jurisdiction of any competent court or other authority under any other law for the time being in force:

Provided that such a decision of refusal shall apply to documents executed from the date of promulgation of this Regulation.

(*3*) Reasons for refusal to register to be recorded as specified under section 71.".

Amendment of section 28.

**7**. In section 28 of the principal Act, for the words, brackets and letters "clauses (*a*), (*b*), (*c*), (*d*) and (*e*),", the words, brackets and letters "clauses (*a*), (*b*), (*c*), (*d*), (*e*), (*f*) and (*g*)," shall be substituted.

Amendment of section 34.

**8**. In section 34 of the principal Act,—

(*i*) in sub-section (*1*), after the words "persons executing such document,", the words "and in the case of document for sale of property, the persons claiming under that document" shall be inserted;

(*ii*) in sub-section (*3*), in clause (*b*), after the words "executed the document,", the words "or they are claiming under the document" shall be inserted.

Insertion of new section 34A.

**9**. After section 34 of the principal Act, the following section shall be inserted, namely:—

Person claiming under document for sale of property also to sign document.

"34A. Subject to the provisions of this Regulation, no document for sale of property shall be registered under this Regulation, unless the person claiming under the document has also signed such document.".

Amendment of section 45.

**10**. In section 45 of the principal Act,—

(*a*) in sub-section (*1*), for the words "cause the contents thereof", the words "cause a true copy of the contents thereof" shall be substituted;

(*b*) in sub-section (*2*), for the words "copy has been made", the words "true copy has been filed" shall be substituted.

Amendment of section 46.

**11**. In section 46 of the principal Act, in sub-section (*2*),—

(*a*) for the words "unless the will has been already copied", the words "unless a true copy of the will has already been filed" shall be substituted;

(*b*) for the words and figure "cause the will to be copied into his Book No. 3", the words and figure "cause a true copy of the will to be made and filed in his Book No. 3" shall be substituted.

Amendment of section 50.

**12**. In section 50 of the principal Act, for the words, brackets, letters and figures "clauses (*a*), (*b*), (*c*) and (*d*) of section 17, sub-section (*1*)", the words, brackets, letters and figures "clauses (*a*), (*b*), (*c*), (*d*), (*e*), (*f*) and (*g*) of sub-section (*1*) of section 17" shall be substituted.

Amendment of section 51.

**13**. In section 51 of the principal Act,—

(*a*) for sub-section (*2*), the following sub-section shall be substituted, namely:—

"(*2*) In Book 1 shall be filed—

(*i*) true copies of all documents; and

(*ii*) the Memoranda,

registered under sections 17, 18 and 89 which relates to immovable property, other than wills.";

(*b*) in sub-section (*3*), for the words "entered all documents", the words "filed the true copies of all documents" shall be substituted;

(*c*) after sub-section (*4*), the following sub-section shall be inserted, namely:—

"(*5*) If, any of the Books mentioned in sub-section (*1*) is destroyed or in the opinion of the Registrar, is in danger of being destroyed, or becoming illegible wholly or partially, the Registrar may, by a written order, direct such Book or such portion thereof as he thinks fit, to be reconstructed or recopied, as the case may be, and authenticated in such manner as may be prescribed, and the copy prepared and authenticated under such direction shall, for the purposes of this Regulation, be deemed to have taken the place of and to be the original Book or portion thereof and all references in this Regulation, to the original Book or portion thereof, shall be deemed to be references to the Book or portion so prepared and authenticated.".

Amendment of section 52.

**14**. In section 52 of the principal Act, in sub-section (*1*), for clause (*c*), the following clause shall be substituted, namely:—

"(*c*) subject to the provisions contained in section 62, where a document is admitted to registration, a true copy thereof shall, without unnecessary delay, be filed in the appropriate Book according to the order of its admission.".

Amendment of section 53.

**15**. In section 53 of the principal Act, the following proviso shall be inserted, namely:—

"Provided that where the Book is in electronic form, all entries and numbers in that Book and the Book maintained manually shall be identical.".

Amendment of section 54.

**16**. In section 54 of the principal Act, for the words "copied, or filed a memorandum of", the words "filed a true copy or a memorandum of" shall be substituted.

Amendment of section 55.

**17**. In section 55 of the principal Act,—

(*a*) in sub-section (*2*), for the words "document entered or memorandum filed", the words "document of which a true copy or a memorandum, is filed" shall be substituted;

(*b*) in sub-section (*4*), for the words "authority entered", the words "authority of which a true copy is filed" shall be substituted;

(*c*) in sub-section (*5*), for the words "document entered", the words "document of which a true copy is filed" shall be substituted.

Amendment of section 58.

**18**. In section 58 of the principal Act,—

(*i*) in sub-section (*1*), after clause (*a*), the following clause shall be inserted, namely:—

"(*aa*) in the case of a document for sale of property, the signature and addition of every person admitting the claim under such document, and, if such claim has been admitted by the representative, assignee or agent of any person, the signature and addition of such representative, assignee or agent;";

(*ii*) in sub-section (*2*), after the words "execution of a document", the words "and in the case a document for sale of property, any person admitting the execution of such document, or any person admitting the claim under that document" shall be inserted.

Amendment of section 60.

**19**. In section 60 of the principal Act, in sub-section (*1*), for the words "the document has been copied", the words "the true copy of the document has been filed" shall be substituted.

Amendment of section 62.

**20**. In section 62 of the principal Act, for sub-section (*1*), the following sub-section shall be substituted, namely:—

"(*1*) When a document is presented for registration under section 19, the translation together with the true copy of the document, shall be filed in the appropriate Book.".

Insertion of new sections 68A and 68B.

**21**. After section 68 of the principal Act, the following sections shall be inserted, namely:—

Prohibition of unlicensed person.

'68A. (*1*) No person who is not licensed as provided under section 68B, shall engage in the profession of document-writer and any document drawn-up and signed by a person who does not hold a licence, shall not be accepted for registration by the registering officers:

Provided that no advocate or pleader shall be required to have a licence under section 68B.

(*2*) Nothing in this section shall prohibit an executant of a document from preparing a document to be presented for registration or from performing any other act on his own behalf for which a licensed document-writer could have been otherwise engaged.

(*3*) Nothing in this section shall apply to a document executed outside of India or outside of the Union territory or a will or a document scribed by a licensed document-writer authorised for one sub-district or district, as the case may be, or a document executed by or on behalf of the Union territory or local authorities or other corporate bodies.

Grant of licence to document-writers.

68B. (*1*) The Registrar of district or any other officer authorised by him in this behalf may, grant a licence in the prescribed form, to a document-writer or his apprentice, on such terms and conditions as may be prescribed:

Provided that such licence shall be—

(*i*) valid for one sub-district or one district; and

(*ii*) granted after conducting a written test in such manner as may be determined by the Administrator.

(*2*) A licence may be granted to any person who has been in the profession of the document-writer for at least ten years prior to date of commencement of this Regulation, without requiring him to appear in the written test referred to in sub-section (*1*), if the Registrar of a district or any other officer authorised by him in this behalf is satisfied that he is otherwise fit to take the profession of a document-writer.

(*3*) A licence granted under sub-section (*1*) shall remain valid for three years from the date of grant of licence and shall be subject to renewal before the expiry of its period of validity, on such terms and conditions as may be prescribed.

(*4*) The licence granted under sub-section (*1*) may, at any time, be suspended or cancelled for breach of such conditions as may be prescribed or for any other reason to be recorded in writing by the Registrar of the district or an officer authorised by him, after giving the document-writer an opportunity to show cause against the proposed suspension or cancellation of the licence and after the same has been duly considered.

(*5*) Any person aggrieved by an order of the Registrar of the district or an officer authorised by him, may file an appeal to the Inspector-General of Registration within a period of thirty days from the date of receipt of such order passed under this section:

Provided that the Appellate Authority may entertain the appeal after the expiry of the said period of thirty days, if he is satisfied that the appellant was prevented by a sufficient cause from preferring the appeal within the given time.

*Explanation*.—For the purposes of sections 68A and this section, the expressions,—

(*i*) "Apprentice" means a person who assists a document-writer in the preparation of document and transcribing them (including copies, if any) to be presented for registration; and

(*ii*) "Document-writer" means and includes a person engaged in the profession of preparing documents, namely, doing the work of conveyancing, investigation of titles, preparation of draft deeds and engrossing and transcribing the deed, including copies, if any, for registration, as well as conducting searches and inspection under the Regulation.'.

Amendment of section 69.

**22**. In section 69 of the principal Act, in sub-section (*1*), after clause (*b*), the following clause shall be inserted, namely:—

"(*bb*) providing for the grant of licences to document-writers and apprentices to document-writer, the suspension and cancellation of such licences, the terms and conditions under which licences may be granted and generally for all other purposes connected with the writing of documents to be presented for registration;".

Insertion of new Part XIA.

**23**. After section 70 of the principal Act, the following Part shall be inserted, namely:—

'PART XIA

REGISTRATION OF DOCUMENTS BY MEANS OF ELECTRONIC DEVICES

Application of this Part.

70A. This Part shall apply to the areas only in respect of which a notification is issued by the Administration under section 70B.

Documents scanned by electronic devices in areas notified by Administration.

70B. (*1*) The Administration may, by notification, direct that in any office as may be specified therein, the process of registration of any category or categories of documents may be completed and copying done with the help of the electronic devices like computers, scanners and the compact disks and copies preserved on such devices and retrieved when required.

(*2*) Notwithstanding anything contained in this Regulation or any other law for the time being in force in the Union territory, a copy of any documents registered and scanned using the electronic devices and certified or attested by the registering officer in-charge of the office shall be admissible as evidence of any transaction as is described in the said document.

(*3*) The registration and authentication of electronic records shall be carried out using secure authentication mechanisms, including but not limited to—

(*a*) "electronic signatures" as defined in clause (*ta*) of sub-section (*1*) of section 2 of the Information Technology Act, 2000; 21 of 2000.

(*b*) Aadhaar based e-authentication under the Aadhaar (Targeted Delivery of Financial and Other Subsidies, Benefits and Services) Act, 2016; 18 of 2016.

(*c*) any other form of digital verification as may be prescribed.

(*4*) All data storage, processing and retrieval under this provision shall comply with the provisions of the Digital Personal Data Protection Act, 2023, including appropriate data protection, encryption, access control, audit trails and cyber security protocols to ensure confidentiality, integrity and availability of personal and sensitive data. 22 of 2023.

(*5*) The Administration shall ensure periodic review and updating of the technological infrastructure and protocols used for electronic registration and document management, in alignment with prevailing national cyber security standards and data protection laws.

Saving.

70C. Nothing contained in this Part shall apply—

(*i*) to any document, which in the opinion of registering officer, is not in a fit condition to be processed by means of electronic devices;

(*ii*) in the case of unforeseen eventuality like break down of the computerised system of registration:

Provided that the registering officer shall record the reason in writing therefor:

Provided further that the registering officer shall ensure that the data and images of the documents registered during the period of non-application of this Part, due to a breakdown of the computerised system, are duly incorporated into the computer system, after the same is restored, in such manner as may be prescribed.'.

Insertion of new section 78A.

**24**. After section 78 of the principal Act, the following section shall be inserted, namely:—

Power to reduce or remit fees.

"78A. If the Administration is satisfied that it is necessary or expedient in the public interest so to do, it may, by notification, reduce or remit, whether prospectively or retrospectively, in the whole or any part of the Union territory, any fee or fees payable in respect of any of the matters specified in clauses (*a*) to (*i*) of section 78, either generally or for any particular class or classes of cases and in respect of persons generally or any particular class or classes of persons.".

Insertion of new section 80A.

**25**. After section 80 of the principal Act, the following section shall be inserted, namely:—

Recovery of fees and provision for refund.

"80A. (*1*) If on inspection or otherwise, it is found that any fee payable under this Regulation has not been paid or has been paid insufficiently, such fee may (after failure to pay the same on demand within the period specified therein), on a certificate of the Inspector-General of Registration, be recovered as an arrear of land revenue from the person from whom such demand is made, the certificate issued by the Inspector-General shall be binding on the parties:

Provided that no such certificate shall be granted unless due inquiry is made and such person is given an opportunity of being heard.

(*2*) Where the Inspector-General of Registration finds the amount of fee in excess of that which is legally chargeable has been charged and paid under the provisions of this Regulation, he may, upon an application in writing or otherwise, refund the excess fee so charged and paid.".

Substitution of new section for section 81.

**26**. For section 81 of the principal Act, the following section shall be substituted, namely:—

Penalty for incorrectly endorsing, copying, translating, registering or filing documents with intent to injure.

"81. Every registering officer appointed under this Regulation and every person employed in his office for the purposes of this Regulation, who, being charged with the endorsing, copying, translating, registering or filing a true copy of any document presented or deposited under its provisions, endorses, copies, translates, registers or files a true copy of such document in a manner which he knows or believes to be incorrect, intending thereby to cause or knowing it to be likely that he may thereby cause, injury, as defined in clause (*14*) of section 2 of the Bharatiya Nyaya Sanhita, 2023, to any person, shall be punishable with imprisonment for a term which may extend to seven years, or with fine, or with both.".

45 of 2023.

Amendment of section 82.

**27**. In section 82 of the principal Act, in clause (*b*), for the words and figures "section 19 or section 21", the words "this Regulation or the rules made thereunder" shall be substituted.

Insertion of new section 82A.

**28**. After section 82 of the principal Act, the following section shall be inserted, namely:—

Penalty for writing documents without licence.

"82A. (*1*) On and from such date as the Administration may, by notification, appoint in this behalf, no person shall write a document for another person for presentation to a registering officer, except under a licence granted in accordance with the rules made under this Regulation:

Provided that nothing in this sub-section shall apply where the writer of such document is an authorised agent of the executants or a pleader engaged by the executants for drawing up the document or the registered clerk of such pleader.

(*2*) Whoever contravenes the provisions of sub-section (*1*), shall be punishable with fine which may extend to two thousand rupees.".

Amendment of section 83.

**29**. In section 83 of the principal Act, for sub-section (*1*), the following sub-section shall be substituted, namely:—

"(*1*) No prosecution for any offence under this Regulation shall be commenced save by or with the permission of the Inspector-General or any officer empowered in this behalf by the Administration.".

Amendment of section 84.

**30**. In section 84 of the principal Act,—

(*i*) in sub-section (*1*), for the words "Indian Penal Code", the words and figures "Bharatiya Nyaya Sanhita, 2023" shall be substituted; 45 of 1860. 45 of 2023.

(*ii*) in sub-section (*3*), for the words and figures "In section 228 of the Indian Penal Code", the words and figures "In section 267 of the Bharatiya Nyaya Sanhita, 2023" shall be substituted. 45 of 1860. 45 of 2023.

Insertion of new section 87A.

**31**. After section 87 of the principal Act, the following section shall be inserted, namely:—

Delegation of powers.

"87A. The Administration may, by order published in the Official Gazette of the Union territory, delegate all or any of the powers conferred on them under this Regulation to the Inspector-General of Registration, who shall exercise the same subject to such restrictions and conditions as the Administration may impose.".

Insertion of new section 89A.

**32**. After section 89 of the principal Act, the following section shall be inserted, namely:—

Power to make rules.

"89A. (*1*) The Administrator, by notification and subject to conditions of previous publication, may, make rules for carrying out the purposes of this Regulation.

(*2*) In particular, and without prejudice to the generality of the foregoing powers, such rules may provide for all or any of the following matters, namely:—

(*a*) the manner of preparation of true copies accompanied to documents for registration under sub-section (*2*) of section 19A;

(*b*) the manner of reconstruction or recopying and authentication of Book or portion of such Book by the Registrar under sub-section (*5*) of section 51;

(*c*) the form, terms and conditions and the method of conducting a written test for granting of a licence by the Registrar under sub-section (*1*) of section 68B;

(*d*) terms and conditions for renewal of licence by the Registrar under sub-section (*3*) of section 68B;

(*e*) the conditions for suspension or cancellation of licence under sub-section (*4*) of section 68B;

(*f*) any other form of digital verification under clause (*c*) of sub-section (*3*) of section 70B;

(*g*) the manner of restoration of documents through electronic devices mentioned under the second proviso to section 70C; and

(*h*) any other matter which is to be, or may be, prescribed, or in respect of which provision is to be made, by rules.

(*3*) Every rules made under this section shall be notified in the Official Gazette of the Union territory and, unless they are expressed to come into force on a particular day, shall come into force on the day on which they are so notified.

(*4*) Every rule made under this section shall be laid, as soon as may be after it is made, before each House of Parliament.".

Amendment of section 90.

**33**. In section 90 of the principal Act, in sub-section (*1*), in clause (*d*), for the words "grants or assignments by Government of land or of any interest in land", the words "grants, assignments or leases by Government of immovable property or of any interest in immovable property" shall be substituted.

Insertion of new section 94.

**34**. After section 93 of the principal Act, the following section shall be inserted, namely:—

Power to remove difficulties.

"94. (*1*) If any difficulty arises in giving effect to the provisions of this Regulation, the Administrator may, by order published in the Official Gazette of Union territory, make such provisions not inconsistent with the provisions of this Regulation as may appear to it to be necessary or expedient for removing the difficulty:

Provided that no order shall be made under this section after the expiry of two years from the date of commencement of this Regulation.

(*2*) Every order made under this section shall be laid, as soon as may be after it is made, before each House of Parliament.".

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DROUPADI MURMU,
*President.*

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DR. RAJIV MANI,
*Secretary to the Govt. of India.*

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